Citizen-Initiated Petition Ballot Question

Official Statements

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At a special meeting held on August 25, 2026, the City Commission of the City of El Dorado approved a resolution placing a question concerning the prohibition of High Impact Data Centers and Tier 2 and Tier 3 Battery Energy Storage Systems on the November general election ballot.

The ballot question arises from a citizen-initiated petition that was circulated earlier this year. The 13th Judicial District recently ruled that the petition addressed a legislative function of municipal government and was an appropriate use of the citizen-initiated petition process.

The ballot question approved by the City Commission will contain the ordinance title and the definition of high impact data centers and Tier 2 and Tier 3 battery energy storage systems. It will also contain information about the duration of the ordinance should it be adopted by voters in November.

Under K.S.A. 12-3013(b), the ballot question may present the proposed ordinance either in full or by a title "generally descriptive of the contents" of the ordinance. Both are lawful options. The full text of the ordinance is lengthy, and using a full-text version on the ballot itself is not required by law. The petition, as circulated to signers, used a short title that named the prohibited uses but did not define them or describe the consequences of adoption.

The City Commission directed that the ballot question include the specific technical thresholds defining "High Impact Data Center" and "Tier 2 and Tier 3 Battery Energy Storage Systems," as well as a description of the ordinance's ten-year effective period. The intent of this addition is to provide voters with this information directly on the ballot rather than requiring voters to look it up separately. This is consistent with, and does not conflict with, the statute's "generally descriptive" standard.

Nothing about the ballot question wording alters what the ordinance itself, prohibits its scope, or its legal effect. The revised question describes the ordinance as drafted in the petition, using the same definitions and terms found in the ordinance text.

Separate from the ballot question, state law requires that the ordinance and proposition be published in full for public review before the election. The City will publish the complete text of the ordinance on its official website at www.eldoks.gov within the time required by K.S.A. 12-3013(d), in addition to the standard election notice. Residents will be able to review the complete ordinance language using these methods in addition to the ballot summary.

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